

26TRCV00514 26TRCV00514

County: los-angeles

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Case Number: 26TRCV00514 Hearing Date: August 3, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

YOLANDA

PIERNAS, an individual

Plaintiffs,

Case

No.:

26TRCV00514

vs.

[Tentative]

Overruled/denied

WIN2

PROPERTY INVESTMENTS LLC; ALTON JEROME GRIFFIN JR; KEESHA TRANEEN GRIFFIN;
and DOES 1 through 100,

inclusive,

Defendants.

Hearing

Date: August 3, 2026

Moving Parties: Defendants Win2 Property Investments
LLC, Alton Jerome Griffin, and Keesha Traneen Griffin

Responding Party: Plaintiff Yolanda Piernas

HEARING: Demurrer with MTS

The Court considered the moving,
opposition, and reply papers.

RULING

The Court
overrules the Demurrer.

The Court denies the
Motion to Strike.

BACKGROUND

On

February 10, 2026, Plaintiff Yolanda

Piernas filed the Complaint against Defendants Win2 Property Investments LLC,
Alton Jerome Griffin, and Keesha Traneen Griffin alleging causes of action for
breach of contract, breach of the implied warranty of habitability, nuisance,
negligence, IIED, violation of Civ. Code section 1942.2, violation of Los
Angeles Rent Stabilization Ordinance, and Violation of Los Angeles Tenant
Anti-Harassment Ordinance.

On June 12, 2026, Defendants filed
the Demurrer and Motion to Strike.

On July 14, 2026, Plaintiff filed
the Opposition.

On July 27, 2026, Defendants filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On June 1, 2026, the parties met and conferred by email regarding the Demurrer. Thus, the Court finds that Defendants have satisfied the meet and confer requirements.

Causes

of Action 3 and 4 – Nuisance and Negligence

Defendants demur to the Third and Fourth Causes of Action, for nuisance and negligence, on two grounds. First, Defendants contend that both causes of action are barred by the two-year statute of limitations, and that the bar appears clearly and affirmatively on the face of the Complaint.

Defendant states

that claims for personal injury, including injuries sounding in negligence and nuisance, are governed by the two-year statute of limitations. (Code Civ. Proc., § 335.1.) To the extent the nuisance and negligence causes of action seek recovery for the physical and mental personal injuries Plaintiff allegedly sustained as a result of the conditions, Defendant maintains that those claims accrued when Plaintiff discovered, or through reasonable diligence should have discovered, her injury and its cause. According to Defendant, the running of the statute appears affirmatively on the face of the Complaint, because Plaintiff alleges that she noticed the visible mold and the water-saturated carpet in 2021, that she immediately notified Defendants at that time, and that she suffered severe physical reactions requiring medical attention as a result of the conditions. Defendant argues that Plaintiff was aware of both the offending conditions and her resulting harm no later than 2021, more than four years before this action was filed on February 10, 2026, consequently, the two-year period expired long before suit was filed.

Defendant further

contends that the Complaint pleads no facts that would avoid this bar. A plaintiff who seeks to rely on the discovery rule to delay accrual must specifically plead facts showing the time and manner of discovery and the inability to have made earlier discovery despite reasonable diligence. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808.) Defendant argues that the Complaint contains no such allegations, pleading no facts establishing delayed discovery, no facts establishing diligence, and no basis for tolling, and that Plaintiff cannot defeat the limitations defense by silence.

Second, Defendant

contends that the nuisance and negligence causes of action are uncertain as to the timing of Plaintiff's injuries. (Code Civ. Proc., § 430.10, subd. (f).)

Defendant argues that the Complaint fails to specify when Plaintiff's injuries were sustained, when she sought treatment, and when she discovered the alleged causal relationship between the conditions and her injuries. According to Defendant, these omissions are not immaterial, because they go directly to whether the claims are timely, and without these basic facts Defendants cannot reasonably evaluate the timeliness of the claims or frame a responsive pleading and limitations defense. Defendant asks that the uncertainty be cured by amendment or the claims dismissed.

In opposition, Plaintiff responds that the negligence and nuisance causes of action are not time-barred. Plaintiff contends that the Complaint specifically alleges that the mold issue started in 2021 but has been ongoing since that time, and that Defendants have never addressed or remediated the mold.

Plaintiff invokes

California's theory of continuous accrual. Under that theory, a series of wrongs or injuries may be viewed as each triggering its own limitations period for torts, such that a suit for relief may be partially time-barred as to older events but timely as to those within the applicable limitations period.

Plaintiff distinguishes continuous accrual from the continuing violation doctrine, explaining that while the continuing violation doctrine renders an entire course of conduct actionable, the theory of continuous accrual supports recovery only for damages arising from those breaches falling within the limitations period.

Plaintiff further

argues that continuing torts such as a continuing trespass or nuisance allow a plaintiff to file successive complaints for damages as long as the tort continues, and that in these cases the cause of action does not accrue until the date of the last injury or when the tortious acts cease. (Pugliese v. Superior Court (2007) 146 Cal.App.4th 1444, 1452.) Applying that rule, Plaintiff contends that she has alleged that the tortious acts still had not ceased as of the filing of the Complaint, relying on allegations that Defendants never addressed or remediated the mold or other issues.

Claims for personal

injury resulting from negligence or nuisance are governed by a two-year statute of limitations. (Code Civ. Proc., § 335.1.) The Complaint states that Plaintiffs noticed the mold and water damage in 2021. (Complaint ¶ 12.)

“The continuing violation doctrine aggregates a series of wrongs or injuries for purposes of the statute of limitations, treating the limitations period as accruing for all of them upon commission or sufferance of the last of them...under the theory of continuous accrual, a series of wrongs or injuries may be viewed as each triggering its own limitations period, such that a suit for relief may be partially time-barred as to older events but timely as to those within the applicable limitations period.” (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1192.) A landlord's duty to repair a known fixable deficiency is not a one-time act of negligence but a continuing breach of duty, retriggered by Plaintiff's exposure to the deficiencies.

Thus, the Court finds that the third and fourth causes of action are not barred by the statute of limitations as pleaded because Plaintiff's exposure was ongoing.

As to Defendant's uncertainty defense, “demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 694.) Here, the Court finds that the Complaint is not so unclear as to be incomprehensible and any ambiguities can be cleared up in discovery.

Therefore, the Court overrules the Demurrer as to the third and fourth causes of action.

Cause of Action 5 – IIED

To succeed on a cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)

Defendants demur to the fifth Cause of Action for intentional infliction of emotional distress, arguing that the conduct alleged is not extreme and outrageous as a matter of law. Defendant emphasizes that conduct is outrageous only when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Cochran v. Cochran (1998) 65 Cal.App.4th 488, 491.)

Applying that standard, Defendant contends that the conduct alleged here, a landlord's failure to repair habitability defects despite notice, does not qualify. Defendant characterizes Plaintiff's allegations as amounting to no more than the assertion that Defendants delayed or failed to make repairs after being notified of substandard conditions. According to Defendant, such allegations are the ordinary stuff of landlord-tenant habitability disputes, and although a knowing failure to repair may support compensatory damages, it does not, without more, constitute the extreme and outrageous conduct required for intentional infliction of emotional distress.

In opposition, Plaintiff responds that she has adequately stated a cause of action for intentional infliction of emotional distress. Plaintiff argues that the appellate court has found that a tenant can state a cause of action for IIED by alleging that she suffered extreme emotional distress as a result of the landlord's and property manager's knowing, intentional, and willful failure to correct defective conditions of the premises, and that whether such a failure to act was extreme and outrageous presented a factual question that could not be resolved as a matter of law on demurrer. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 922.)

Plaintiff emphasizes the severity of the conditions, asserting that the Los Angeles Housing Department became involved and sent violation notices to Defendants in an effort to get them to maintain the subject property. Plaintiff further argues that Defendants' contention that a landlord's knowing failure to repair uninhabitable conditions supports compensatory damages but is not extreme and outrageous conduct is conclusory and unsupported by any legal authority. Plaintiff argues that on demurrer it would be impossible to determine whether the failure to repair was extreme and outrageous without reviewing the evidence, including photographs, videos, and reports from the Los Angeles Housing Department.

Here, the Complaint alleges that Plaintiffs made multiple requests over four years to Defendants to remedy the active mold infestation, lack of ventilation, and dampness. (Complaint ¶ 9-14.) Thus, it is alleged that Defendants knowingly failed to implement repairs required by the health and safety code for nearly half a decade. The Court finds that this lack of response is so extreme as to exceed all bounds of that usually tolerated in a civilized community.

Therefore, the Court overrules the Demurrer as to the fifth cause of action.

Motion
to Strike

California law authorizes a party's motion to strike a matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see also City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party's declaration or factual representations made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also Duffy v. Campbell (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc., § 436.)

Defendants request
that the Court strike the Complaint's request for punitive damages.

Punitive
Damages

"In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil Code § 3294 subd. (a).)

Under

the statute, malice is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others," and oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Code Civ. Proc. § 3294 subd. (c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or contemptible. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Also, "[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences" (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

Here, the Court finds

that the Complaint alleges conscious disregard for the rights of others through Defendants' failure to remedy the active mold infestation, lack of ventilation, and dampness despite multiple years of notice.

Therefore, the Court denies the Motion to Strike.